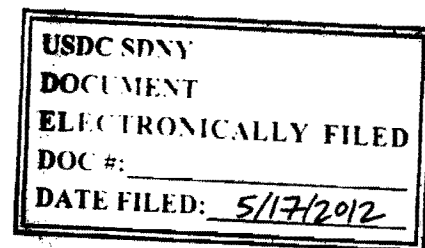


UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK



MARIO DELORBE,

Plaintiff,

-v-

THE CITY OF NEW YORK et al.,

Defendants.

10 Civ. 8822 (PAE)

ORDER OF
DISCONTINUANCE

PAUL A. ENGELMAYER, District Judge:

The Court has received defendants' letter, dated May 15, 2012, advising the Court that the parties have reached a settlement in principal. All deadlines related to the anticipated summary judgment motions are hereby adjourned until further order of the Court.

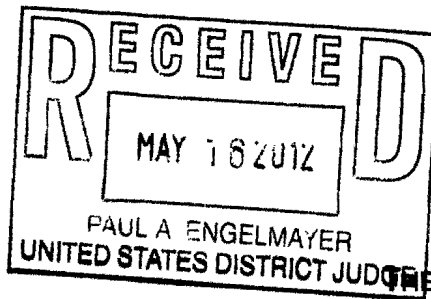
It is hereby ordered that the above-captioned action is discontinued without costs to any party and without prejudice to restoring the action to this Court's calendar if the application to restore the action is made within 30 days.

SO ORDERED.

A handwritten signature in cursive script, reading "Paul A. Engelmayer".

Paul A. Engelmayer
United States District Judge

Dated: May 17, 2012
New York, New York



MICHAEL A. CARDOZO
Corporation Counsel

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May 15, 2012

BY HAND DELIVERY

Honorable Paul A. Engelmayer
United States District Judge
Southern District of New York
500 Pearl Street
New York, NY 10007

Re: Mario Delorbe v. City of New York, et al., 10 Civ. 8822 (PAE)

Dear Judge Engelmayer:

I am an Assistant Corporation Counsel in the Special Federal Litigation Division of the New York City Law Department and the attorney assigned to the defense of the above-referenced case. I write to inform the Court that the parties have reached a settlement agreement in this matter. The Stipulation of Settlement and Order of Dismissal will be filed with the Court as soon as this office receives it fully executed from plaintiff.

In light of the above, it is respectfully submitted that the deadline for submission of pre-motion conference letters is no longer necessary.

Thank you for your consideration in this regard.

Respectfully submitted,

Lisa M. Richardson
Assistant Corporation Counsel
Special Federal Litigation Division

cc: BY EMAIL
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New York, NY 10007